

whatsoever. And if a freeman in city, burgh, or town corporate be disfranchised unjustly, albeit he hath no priviledge in this court, yet this court may relieve the party, as it appeareth in James Bagges case, *ubi supra, et sic in similibus*.

F. N. B. 89. 92.
* Tr. 19 E. 3.
coram rege
rot. 56. Linc.

b 2 part of the
Institutes, Mag-
na Carta, cap. 11.

Fourthly, this court may hold plea by writ out of the chancery of all trespasses done *vi et armis*, of replevins, of * *quare impedit, &c.*

b See the second part of the Institutes, the 11 chapter of Mag. Carta, *Communia placita non sequantur curiam nostram*.

Fifthly, this court hath power to hold plea by bill for debt, detinue, covenant, promise, and all other personall actions, *ejectione firme*, and the like, against any that is in *custodia mareschalli*, or any officer, minister, or clerk of the court: and the reason hereof is, for that if they should be sued in any other court they should have the priviledge of this court: and lest there should be a fayler of justice (which is so much abhorred in law) they shall be impleaded here by bill though these actions be common pleas, and are not restrained by the said act of Magna Carta, *ubi supra*. Likewise the officers, ministers, and clerks of this court privileged by law in respect of their necessary attendance in court, may impleade others by bill in the actions foresaid. And all this appeareth by Bracton, who lived when Magna Carta was made, *ubi supra*: where he saith, *Et aliorum omnium per querelam vel per privilegium sive libertatem*. And continuall experience concurrith with antiquity herein.

See the second
part of the In-
stitutes, *ubi*
supra, 27 H. 3.
coram rege.
rot 9.
Hus & Haut,

§ 1 H. 6. 10. b.
adjudge.

H. P. captus per querimoniam mercatorum Flandrie et imprisonatus offert domino regi hus et haut in plegio ad standum recto, et ad respondendum predictis mercatoribus, et omnibus aliis qui versus eum loqui voluerint, &c. This plea was after the statute of Magna Carta, anno 9 H. 3. Of these words *hus* and *haut*, two French words. *Hus* signifying an elder-tree, and *haut* the staffe of a halbert, &c. I leave the conjecture that some have made thereof to themselves: we think it was then common bail changed now to *Do* and *Ro*, and the rather for this word [*effert*.] And it is observable, that then putting in baile at one mans suit, he was in *custodia mareschalli* to answer all others which would sue him by bill, and this continueth to this day. If any person be in *custodia mareschalli, &c.* be it by commitment, or by latitat', bill of Mid' or other proces of law, it is sufficient to give the court jurisdiction: and the rather, for that the court of common pleas is not able to dispatch all the subjects causes, if the said actions should be confined only to that court. And seeing none but serjeants at law can practise in the court of common pleas, it is necessary that in this court of kings bench apprentices and other counsellors of law might by experience inable themselves to be called serjeants afterwards; otherwise serjeants must want experience, which is the life of their profession. And the proceedings in that court for so long time, and under so many honourable judges and reverend sages of the law, hath gotten such a foundation, as cannot now without an act of parliament be shaken. And the errors in the kings bench cannot be reversed (but in certain particular actions by the statute of 27 Eliz. cap. 8. wherein the jurisdiction of the court is saved) but in the high court of parliament, as before in the chapter of the court of parliament appeareth.

Sixthly,